

1. Line 9 through 15:

- 9 registered;
- 10 →establishes civil penalties for selling an unregistered non-nicotine inhalation product or
- 11 non-nicotine inhalation substance;
- 12 →creates the criminal offense of illegal distribution of a cannabinoid inhalation product ~~that~~→
- 12a or cannabinoid inhalation substance ~~that~~ ;
- 13 →clarifies that a cannabinoid product does not include an electronic cigarette; and
- 14 →defines terms.
- 15 **Money Appropriated in this Bill:**

2. Line 729 through 742:

- 729 Section **76-9-1120**. is enacted to read:
- 730 **76-9-1120** Unlawful sale of a cannabinoid inhalation product ~~that~~→ or cannabinoid
- 730a inhalation substance ~~that~~ .
- 731 (1) As used in this section:
- 732 (a) "Cannabinoid inhalation product" means an electronic cigarette that contains a
- 733 cannabinoid.
- 733a ~~that~~→ (b) "Cannabinoid inhalation substance" means a substance containing a
- 733b cannabinoid that is used or intended for use in an electronic cigarette.
- 734 [~~(b)~~] (c) ~~that~~→ "Compensatory service" means service or unpaid work performed by an
- 734a employee,
- 735 in lieu of the payment of a fine or imprisonment.
- 736 ~~that~~→ [~~(c)~~] (d) ~~that~~→ "Employee" means an employee or an owner of a retailer.
- 737 (2) An actor commits unlawful sale of a cannabinoid inhalation product ~~that~~→ or cannabinoid
- 737a inhalation substance ~~that~~ if the actor:
- 738 (a) is an employee; and
- 739 (b) intentionally or knowingly sells or gives a cannabinoid inhalation product ~~that~~→ or
- 739a cannabinoid inhalation substance ~~that~~ in the
- 740 course of business to an individual.
- 741 (3) A violation of Subsection (2) is:
- 742 (a) on a first violation: